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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S REQUEST FOR JUDICIAL
NOTICE IN SUPPORT OF OPPOSITION TO
DEFENDANTS' SPECIAL MOTION TO
STRIKE (CCP §425.16)

(Evid. Code, §§451, 452, 453; Cal. Rules of Court, rule
3.1113(l))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 Authority and standard

2 Plaintiff respectfully requests that the Court take judicial notice of the matters set forth
3 below in support of Plaintiff's Consolidated Operative Opposition to Defendants' Special
4 Motion to Strike Pursuant to C.C.P. §425.16; Fifteen-Page Compliant Version (filed May 7,
5 2026). This Request is filed under Cal. Rules of Court, rule 3.1113(l) (RJN as a separate
6 document not subject to the 15-page memorandum cap), CRC 3.1306(c), and Evid. Code
7 §§ 451, 452(b), (c), (d), (h), and 453.

8 Evidence Code §453 obligates the Court to take judicial notice of any matter described in
9 §452 if a party requests it, gives each adverse party sufficient notice of the request, and
10 furnishes the Court with sufficient information to enable it to take judicial notice of the
11 matter. Plaintiff has served this Request on Defendants concurrently with the Operative
12 Opposition and provides the citation, year, and reporter for each decisional authority and
13 the cite for each statute, rule, and court record below. Where a party may consult an
14 authoritative source (e.g., Westlaw, the Official Reports, the California Codes, the Rules of
15 Court, the Court's own docket), Evid. Code §452(c), (d), (h) and §453 supply the Court
16 with the predicate.

17
18 Section A. Court records (Evid. Code §452(d))

19 Plaintiff requests judicial notice of the following court records:

- 20 1. Substitution of Attorney filed May 4, 2023, Trans. ID 69953800, in Rosario v. Abdelhalim,
21 Superior Court of California, County of San Francisco, signed by counsel of record for
22 the underlying defendant. (Evid. Code §452(d).)
- 23 2. Order Granting Waiver of Court Fees and Costs Pursuant to Government Code §68630
24 et seq. filed Dec. 23, 2025 in this case (CGC-25-631801), Doc. No. 004. (Evid. Code
25 §452(d).)
- 26 3. Minute order for the May 6, 2026 hearing in Dept. 301 in this case (CGC-25-631801)
27 (CMC continuance order, Doc. No. 084 (May 6, 2026, court minutes), continuing CMC
28 of May 27, 2026 to July 6, 2026). (Evid. Code §452(d).)

- 1 4. First Amended Complaint filed February 25, 2026 in this case (CGC-25-631801), Doc.
2 No. 007. (Evid. Code §452(d).)
- 3 5. Notice of Appeal in Rosario v. Abdelhalim, Court of Appeal Case No. A173827, First
4 District Court of Appeal. (Evid. Code §452(d).) Plaintiff acknowledges Defendants'
5 RFJN of April 9, 2026 includes the appellate docket and notice of appeal at Exhibits
6 Q and R; Plaintiff joins judicial notice of those court records and reserves objection to
7 legal effect (see Plaintiff's Combined Objection to RFJN and Evidentiary Objections
8 filed April 21, 2026, Doc. No. 028).
- 9 6. Plaintiff's Supplemental Bench Briefs re §425.17(c) filed May 5, 2026 in this case, Trans.
10 IDs 79390442 and 79390024 (Doc. Nos. 069, 071, 075, 077). (Evid. Code §452(d).)
- 11 7. Defendants' Special Motion to Strike package filed April 9, 2026 in this case (Doc. Nos.
12 017 to 020), including the Memorandum of Points and Authorities, the Declaration of
13 Tyler J. O'Connell, and the Request for Judicial Notice. (Evid. Code §452(d).)
- 14 8. Defendants' Reply in support of Special Motion to Strike filed May 5, 2026 in this case
15 (Doc. No. 080), and the Declaration of Tyler J. O'Connell in Support of Reply filed
16 May 5, 2026 (Doc. No. 081), with Exhibit A (redacted billing summary). (Evid. Code
17 §452(d).)
- 18 9. Plaintiff's §128.7 Notice of safe-harbor under CCP §128.7(c)(2) filed May 5, 2026 in
19 this case (Doc. Nos. 073, 079). (Evid. Code §452(d).)
- 20 10. Plaintiff's Notice of Non-Receipt of Tentative Ruling for May 6, 2026 hearing, filed May
21 6, 2026 in this case. (Evid. Code §452(d).)
- 22 11. Compex Subpoena CA1147102-021 dated February 1, 2024, issued by Alberto Reyna
23 (Bar #347323) of Phillips, Spallas & Angstadt LLP, directed to San Francisco Police
24 Department, Records Division, for Report No. 210079556, commanding production of
25 911 recordings, body-worn camera footage, CAD logs, and all related documents. (Evid.
26 Code section 452(d).)
- 27 12. Plaintiff's Notice of Motion and Motion for Good-Cause Order Permitting Specified
28 Discovery filed May 7, 2026 in CGC-25-631802, Superior Court of California, County of

1 San Francisco, Department 302, set for hearing May 18, 2026, 9:00 a.m., before the Hon-
2 orable Garrett L. Wong. (Evid. Code §452(d).) This cross-case docket entry is noticed
3 so that the record before Department 301 (this Court) and the record before Depart-
4 ment 302 are aligned as to the companion §425.16(g) good-cause-discovery proceeding
5 referenced in the Operative Opposition Section VII, cross-hearing notice paragraph.
6

7 Section B. Statutes and rules (Evid. Code §451(a) to (c))

8 Plaintiff requests judicial notice of the text of the following statutes and rules, of which
9 judicial notice is mandatory under Evid. Code §451(a) (constitutional and statutory en-
10 actments) and §451(b) (rules of pleading, practice, and procedure adopted by the Judicial
11 Council):

12 California Code of Civil Procedure - §425.16(b), (c)(1), (e)(1) to (4), (f), (g), (i) - §425.17(a),
13 (b)(1) to (3), (c)(1), (c)(2), (d)(1), (d)(2), (e) - §128.7(b), (c)(1), (c)(2) - §1005(b) - §1010.6
14 - §§ 12, 12a, 1010.6

15 California Civil Code - §47(b)

16 California Evidence Code - §§ 451(a) to (c), 452(b), (c), (d), (h), 453 - §702 (personal
17 knowledge) - §§ 800 to 805 (lay and expert opinion) - §1200 (hearsay) - §1271 (business
18 records exception) - §1521 (best-evidence rule) - §352 (probative-vs.-prejudicial discretion)

19 California Insurance Code (Unfair Insurance Practices Act and Insurance Information and
20 Privacy Protection Act) - section 790.02 (statutory purpose; regulation of trade practices
21 in the business of insurance) - section 790.03(h) lead-in (definition of unfair claims settle-
22 ment practices) - section 790.03(h)(1) (misrepresenting facts or insurance policy provisions)
23 - section 790.03(h)(3) (failing to adopt and implement reasonable standards for the prompt
24 investigation and processing of claims) - section 790.03(h)(4) (failing to acknowledge and act
25 reasonably promptly upon claim communications) - section 790.03(h)(5) (failing to attempt
26 in good faith to effectuate prompt, fair, and equitable settlement when liability is reasonably
27 clear) - section 790.03(h)(6) (compelling insureds to institute litigation by offering substan-
28 tially less than the amounts ultimately recovered) - section 790.03(h)(7) (attempting to settle

1 for less than the amount to which a reasonable person would have believed the insured was
2 entitled by reference to written or printed advertising material) - section 790.03(h)(11) (mak-
3 ing known a practice of appealing arbitration awards to compel below-award settlements) -
4 section 790.03(h)(13) (failing to provide promptly a reasonable explanation of the basis for
5 the denial of a claim) - section 790.04 (Insurance Commissioner’s examination and investi-
6 gation authority) - section 790.05 (cease-and-desist orders and monetary penalties for unfair
7 practices) - section 791.03 (Insurance Information and Privacy Protection Act; collection and
8 handling of personal claim information) - section 791.13 (Insurance Information and Privacy
9 Protection Act; disclosure limitations on personal claim information)
10 California Code of Regulations, title 10 (Fair Claims Settlement Practices Regulations) - 10
11 CCR section 2695.1(a) (purpose; minimum standards for the settlement of claims; violation
12 constitutes section 790.03(h) unfair practice) - 10 CCR section 2695.1(d) (regulations are
13 minimum standards; failure to comply may constitute section 790.02 or 790.03 violation)
14 - 10 CCR section 2695.2(c) (definition of “claim”) - 10 CCR section 2695.2(t) (definition
15 of “proof of claim”) - 10 CCR section 2695.2(y) (definition of “investigation”) - 10 CCR
16 section 2695.3 (file and record documentation; reconstruction-grade claim files) - 10 CCR
17 section 2695.4(a) (representations to claimants; disclosure of benefits, coverages, time limits,
18 and applicable policy provisions) - 10 CCR section 2695.5(b) (fifteen-day complete-response
19 requirement) - 10 CCR section 2695.5(c) (fifteen-day acknowledgment of notice of claim) - 10
20 CCR section 2695.7(b) (forty-day determination requirement) - 10 CCR section 2695.7(b)(1)
21 (written denial; statement of all bases plus factual and legal bases for each) - 10 CCR
22 section 2695.7(b)(3) (Department of Insurance review notice on denial) - 10 CCR section
23 2695.7(c)(1) (status updates when more time is needed; thirty-day update cadence) - 10
24 CCR section 2695.7(d) (thorough, fair, and objective investigation duty) - 10 CCR section
25 2695.7(g) (no unreasonably low settlement offers) - 10 CCR section 2695.7(h) (timely tender
26 within thirty days of acceptance) - 10 CCR section 2695.8 (additional auto-specific duties
27 for automobile insurance claims)
28 California Rules of Court - 3.1110 (formatting) - 3.1112(a), (b) - 3.1113(d) (15-page mem-

1 orandum cap) - 3.1113(e) (leave to file longer memorandum) - 3.1113(f) (TOC, TOA, sum-
2 mary of argument) - 3.1113(g) (over-length papers) - 3.1113(j) (incorporation by reference)
3 - 3.1113(l) (RJN as separate document) - 3.1115 (declarations) - 3.1116 (transcripts) -
4 3.1300(d) (no paper rejected for untimeliness) - 3.1306(a), (b), (c)(2) - 3.1308 (tentative
5 rulings)

6 Local Rules of the Superior Court of California, County of San Francisco - 8.3 (Law and
7 Motion); 8.3(D) (tentative ruling notice procedure)

8 Cross-reference (incorporation under CRC 3.1113(j)): Plaintiff has separately and contem-
9 poraneously filed, on May 7, 2026, a Plaintiff's Supplemental Request for Judicial Notice
10 of California Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Reg-
11 ulations (10 CCR Sections 2695.1 through 2695.8). The Supplemental RFJN reproduces
12 or paraphrases the verbatim text of each Insurance Code and 10 CCR provision identified
13 above in this Section B and is incorporated here by reference under CRC 3.1113(j).

14
15 Section C. Decisional authorities relocated out of the 15-page memorandum body (Evid.
16 Code §452(c) and (h))

17 Plaintiff requests judicial notice of the existence and the text of the published decisions
18 identified below, and of the legal propositions for which they stand as published opinions of
19 California and federal courts. Judicial notice is sought as to the existence and text of the
20 opinions only, and not as to the truth of any disputed factual statement contained therein.
21 The Court may consult any of the official Reports, Westlaw, Lexis, or California Courts
22 website to verify the citation. (Evid. Code §452(c) and (h); §453.)

23 The decisions are catalogued in support of Plaintiff's Operative Opposition (filed May 7,
24 2026), Sections II to VIII, and Plaintiff's Notice and Statement re C.C.P. §425.17 (filed May
25 7, 2026), as supplemental decisional authority. None of the decisions in this Section C is
26 required to deny Defendants' motion; Plaintiff's principal legal grounds (Pool A authority)
27 are pleaded in the Operative Opposition body. The decisions in this Section C are presented
28 to the Court as a complete authority record consistent with the prior over-length memoranda

of April 21, 2026 and May 1, 2026 that the Operative Opposition supersedes.

1. Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995

a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section: Allegation-level (vs. claim-level) parsing under Baral; relevant to Operative Opposition §VI.

2. Tourgeman v. Nelson & Kennard (2014) 222 Cal.App.4th 1447

a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section: Representative UCL / public-interest action enforces the public interest under §425.17(b); §III.

3. HMS Capital, Inc. v. Lawyers Title Co. (2004) 118 Cal.App.4th 204

a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section: Evidentiary objections in §425.16 motion practice are reviewed de novo; §I.

4. Optional Capital, Inc. v. DAS Corp. (2014) 222 Cal.App.4th 1388

a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section: Non-communicative conduct (concealment / pre-trial acts) is outside §425.16(e)(1) to (4); §II.

5. Mendoza v. Hamzeh (2013) 215 Cal.App.4th 799

a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section: Flatley “illegal as a matter of law” standard satisfied where conduct violates penal or professional duties; §IV.

6. Inland Oversight Committee v. County of San Bernardino (2015) 239 Cal.App.4th 671

a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section: §425.17 categorical exclusion is decided as a matter of law before Equilon / Park burden-shifting; §I, §III.

7. Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238

a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section: Fraud on the court is structural and not bounded by ordinary procedural defenses; §IV.

- 1 8. In re Levander (9th Cir. 1999) 180 F.3d 1114
- 2 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition sec-
- 3 tion: Same as #7; structural fraud-on-the-court principles in federal practice; §IV.
- 4 9. Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1
- 5 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition sec-
- 6 tion: Recognizing fraud-on-the-court principles in California practice; §IV.
- 7 10. Kimmel v. Goland (1990) 51 Cal.3d 202
- 8 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
- 9 Litigation privilege does not extend to non-communicative tortious conduct, including
- 10 evidence concealment; §V.
- 11 11. Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232
- 12 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
- 13 Privilege does not bar a fraud claim where the underlying conduct is the fraud rather
- 14 than communications about a matter being litigated; §V. (Also confirmed in Pool A.)
- 15 12. Pollock v. University of Southern California (2003) 112 Cal.App.4th 1416
- 16 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
- 17 Privilege does not insulate criminal or extrinsic conduct; §V.
- 18 13. In re Marriage of Modnick (1980) 33 Cal.3d 897
- 19 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
- 20 Deliberate concealment of relevant evidence is extrinsic, not intrinsic, fraud; §V.
- 21 14. Aheroni v. Maxwell (1988) 205 Cal.App.3d 284
- 22 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
- 23 Concealment that prevents the opposing party from fairly presenting the case is extrinsic
- 24 fraud; §V.
- 25 15. Estate of Sanders (1985) 40 Cal.3d 607
- 26 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
- 27 Extrinsic fraud where the wronged party was prevented from a fair adversary hearing;
- 28 §V.

- 1 16. Britts v. Superior Court (2006) 145 Cal.App.4th 1112
2 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
3 Good-cause discovery available during §425.16(g) discovery stay; §VII.
4 17. Garment Workers Center v. Superior Court (2004) 117 Cal.App.4th 1156
5 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
6 Same as #16; §425.16(g) stay does not foreclose targeted discovery on showing of good
7 cause; §VII.
8 18. Boddie v. Connecticut (1971) 401 U.S. 371
9 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
10 Due-process limits on fee shifting against indigent plaintiffs; §VII.
11 19. Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315
12 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section: A
13 §425.16(c)(1) fee award requires the moving party to be “prevailing”; §VIII.
14 20. Decker v. U.D. Registry, Inc. (2003) 105 Cal.App.4th 1382
15 a. Subject-matter (one-sentence description); cross-ref to Operative Opposition section:
16 Where the anti-SLAPP motion is “frivolous or solely intended to cause unnecessary
17 delay,” fees are awardable to plaintiff; §VIII.

18
19 Authentication and reliable-source statement

20 For each decision listed in Section C, the citation form (year, reporter, court, page) is suf-
21 ficient to allow the Court to consult the Official Reports or any standard legal-research
22 database to confirm the existence and text of the published opinion. Plaintiff has indepen-
23 dently verified the year and reporter for each citation. Plaintiff does not represent the truth
24 of any disputed factual matter contained in the decisions; Plaintiff requests judicial notice
25 only of the existence of the published opinions and the legal propositions for which each
26 opinion stands.

27 For the court records identified in Section A, Plaintiff has cited the case caption, court,
28 document number, and Trans. ID where available. The records are available on the SF

1 Superior Court eCourt Public Portal and are part of the Court's own files in this case.
2 For the statutes and rules identified in Section B, Plaintiff has cited the section numbers
3 and subdivisions; the official text is available in the California Codes, the California Rules
4 of Court, and the SF Local Rules.

6 Conclusion

7 Plaintiff respectfully requests that the Court take judicial notice of each item identified in
8 Sections A, B, and C above, and incorporates by reference under CRC 3.1113(j) the Plaintiff's
9 Supplemental Request for Judicial Notice of California Insurance Code Section 790.03(h) and
10 Fair Claims Settlement Practices Regulations (10 CCR Sections 2695.1 through 2695.8) filed
11 contemporaneously on May 7, 2026. Notice of this Request and the Supplemental Request
12 was given to all parties contemporaneously with service of Plaintiff's Operative Opposition
13 (filed May 7, 2026). Pursuant to Evid. Code §453, the predicates for mandatory judicial
14 notice are satisfied.

16 Cross-references: Plaintiff's Consolidated Operative Opposition (filed May 7, 2026) §§ I
17 to VIII; Plaintiff's Notice and Statement re C.C.P. §425.17 (filed May 7, 2026), including
18 new Section IV-A (Insurance Code section 790.03(h) and Fair Claims Settlement Practices
19 Regulations Violation Register); Plaintiff's Supplemental Request for Judicial Notice of Cal-
20 ifornia Insurance Code Section 790.03(h) and Fair Claims Settlement Practices Regulations
21 (10 CCR Sections 2695.1 through 2695.8) (filed May 7, 2026); Plaintiff's Declaration in
22 Opposition (filed May 7, 2026); Plaintiff's Evidentiary Objections to Declarations of Tyler
23 J. O'Connell (filed May 7, 2026); Plaintiff's Indexed Exhibits Volume (filed May 7, 2026);
24 Plaintiff's Notice of Lodging (filed May 7, 2026).

25 The foregoing is submitted by Plaintiff in pro per.

Dated: May 7, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:30 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	Evid. Code section 451(a)	Mandatory judicial notice (statutes, rules, regulations)	Sections A, B, C take notice of statutes, rules, and decisional authority	Sections A, B, C	PASS
2	Evid. Code section 452(b), (c), (d), (h)	Permissive judicial notice (regulations, official acts, court records, facts of common knowledge)	Sections A, B, C cite the four subdivisions where applicable	Sections A, B, C	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
3	Evid. Code section 453	Procedural prerequisite for judicial notice	Notice given to opposing counsel via concurrent service of this RJN; supporting authorities provided in Section C	Proof of Service (POS-050) filed con- currently; Section C	PASS
4	CRC 3.1113(l)	RJN as separate document for collateral authorities	RJN catalogues authorities outside the 15-page memorandum body, in compliance with CRC 3.1113(l)	Cover statement and Section C	PASS
5	CRC 3.1306(c)	Notice of intent to rely on extra-record authorities	RJN provides advance notice of authorities relied upon	Cover statement	PASS
6	CCP section 425.16	Authority underlying the motion to which RJN responds	RJN supports opposition to the section 425.16 motion	Caption and cover statement	PASS
7	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
8	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
9	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
10	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding roman appendix	PASS
11	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
12	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	RJN body; graphic signer before appendix; Proof of Service	PASS